

M/s Shree Radhey Ice Factory v. State of U.P. & 4 Others

Allahabad High Court · Division Bench · 16 April 2018 · 2018 SCC OnLine All 357 · Writ - C No. 5263 of 2018 · **Writ petition disposed of with a direction to the Executive Engineer to decide the billing objections under Clause 6.5 within three weeks**

HEADNOTE

A consumer's grievance about incorrect electricity bills must be raised, in terms of Clause 6.5 of the U.P. Electricity Supply Code, 2005, before the Executive Engineer, and not before the Permanent Lok Adalat or the Managing Director. The petitioner had first (erroneously) approached the Permanent Lok Adalat and then made a representation to the Managing Director. The Court held that the representation ought to have been moved before, or redirected to, the Executive Engineer under Clause 6.5, and disposed of the petition directing the Executive Engineer to pass an appropriate reasoned order on the objections (Annexure-4) within three weeks if not already done under Clause 6.5.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Billing objections must be raised before, and decided by, the Executive Engineer under Clause 6.5

QUESTION

Before which authority must a consumer raise a dispute about incorrect bills, and what direction follows where the consumer approached the wrong forum?

HOLDING

A billing grievance must be raised under Clause 6.5 before the Executive Engineer; approaching the Permanent Lok Adalat or the Managing Director is misconceived. Where the consumer's objections had not received the attention of the competent authority owing to his wrong approach, the Court directed the Executive Engineer to consider the objections and pass an appropriate reasoned order in accordance with law under Clause 6.5 within three weeks. ¶ 2-9

LIMITING FACTS

Petitioner had approached the Permanent Lok Adalat and then the Managing Director; the Executive Engineer had recorded only that the petitioner failed to appear, without dealing with the objections.

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 Disputes over incorrect/regular bills lie under Clause 6.5 before the Executive Engineer, who must pass a reasoned order on the objections. ¶ 4-9

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — THE CORRECTNESS OF THE DISPUTED BILLS ON MERITS

Left to the Executive Engineer to decide under Clause 6.5 within three weeks. ¶ 8